

HOUSE No. 5636

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill authorizing the division of capital asset management to enter into a lease with the town of Plymouth for purposes of maintaining Pilgrim Memorial park in the town of Plymouth (Senate, No. 3235), reports recommending that the same ought to pass with amendments striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5636; and by striking out the title and inserting in place thereof the following title: “An Act authorizing the division of capital asset management and maintenance to enter into a lease with the town of Plymouth for purposes of maintaining the Pilgrim Memorial state park in the town of Plymouth.”.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 (a) Notwithstanding any general or special law to the contrary, the commissioner of
2 capital asset management and maintenance, in consultation with the commissioner of
3 conservation and recreation, may enter into a 25-year lease with the town of Plymouth for the
4 fields and facilities, together with the land and appurtenances of a parcel of land known as the
5 Pilgrim Memorial state park, which is located at 79 Water street in the town of Plymouth. The
6 lease may provide for improvements to the field and facilities, together with the land and
7 appurtenances.

8 (b) Any lease executed pursuant to subsection (a) shall be on terms, conditions and
9 consideration acceptable to the commissioner of capital asset management and maintenance, in
10 consultation with the commissioner of conservation and recreation, and may be renewed
11 decennially for 10-year terms at the discretion of the parties named above; provided, however,
12 that any lease entered into pursuant to subsection (a) shall provide that: (i) the town of Plymouth
13 shall provide general oversight for land, facilities, fields and appurtenances associated therewith
14 during the term of the lease; (ii) the town of Plymouth shall carry comprehensive general liability
15 insurance naming the commonwealth as a co-insured, to protect the commonwealth against all
16 claims for personal injury or property damage arising from or on land and appurtenances

17 associated therewith during the term of the lease; (iii) Pilgrim Memorial state park shall be
18 accessible to the general public when not in use by permittees; (iv) the town of Plymouth shall
19 not design or construct any facilities on the parcel of land without the written approval of the
20 commissioner of capital asset management and maintenance and the commissioner of
21 conservation and recreation; (v) the town of Plymouth shall be responsible for all utility costs,
22 subject to the lease, and for the general day-to-day maintenance of Pilgrim Memorial state park;
23 and (vi) the town of Plymouth shall have sole responsibility for the development of rules and the
24 establishment of fees for the use of Pilgrim Memorial state park.; and

25 by striking out the title and inserting in place thereof the following title: “An Act authorizing the
26 division of capital asset management and maintenance to enter into a lease with the town of
27 Plymouth for purposes of maintaining the Pilgrim Memorial state park in the town of
28 Plymouth.”.